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3rd SESSION, 67th GENERAL ASSEMBLY
Province of Prince Edward Island
4 CHARLES III, 2026

(Bill No. 102)

An Act to Amend the Conflict of Interest Act

Brendan Curran
MLA

PRIVATE MEMBER'S BILL

Andrea MacRae
Acting King's Printer
Charlottetown, Prince Edward Island

**For House
Use Only**

**Prince Edward Island
Legislative Assembly**

ASSEMBLY / SESSION / YEAR
67th General Assembly / 3rd / 2026

AMENDMENTS

BILL NUMBER: 102			PAGE No. 2 of 6 PAGES
TITLE: An Act to Amend the Conflict of Interest Act			
#	SECTION	AMENDMENT	DATE
NOTED:		CERTIFIED CORRECT:	
COMMITTEE CLERK		CHAIR, IN COMMITTEE	



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BE IT ENACTED by the Lieutenant Governor and the Legislative Assembly of the Province of Prince Edward Island as follows:

1. **The *Conflict of Interest Act* R.S.P.E.I. 1988, Cap. C-17.1, is amended by the addition of the following after section 20:**

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(1) Notwithstanding section 17 and subsections 18(1) and 19(1), a Minister who is the holder of a licence, or who holds all of the shares of a corporation that holds a licence, may continue to hold the licence or the shares, as the case may be, and may engage in and personally carry out activities authorized under that licence, where

- (a) the licence is one that, under the enactment of Prince Edward Island or Canada, as the case may be,
 - (i) is required to be held only by the licence holder, and
 - (ii) cannot be transferred, assigned, divested or placed in a trust;
- (b) the Minister has disclosed all material facts relating to the licence to the Commissioner for the purpose of confirming that the requirements of clause (a) are met; and
- (c) the Minister otherwise complies with this Act.

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(2) For greater certainty, a conflict of interest does not arise solely by reason of a Minister

- (a) holding a licence or engaging in or personally carrying out activities authorized under a licence referred to in subsection (1); or
- (b) holding all the shares of a corporation that is the holder of a licence referred to in subsection (1).

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(3) For the purposes of this section, “**licence**” means a licence, permit, quota or other authorization issued under an enactment of Prince Edward Island or Canada.



SECTION 1 amends the *Conflict of Interest Act* R.S.P.E.I. 1988, Cap. C-17.1, by adding a new section 20.1 that provides an exception to the prohibitions in section 17 and subsections 18(1) and 19(1). A Minister who holds a licence, as that term is defined, or holds all the shares of a corporation that holds a licence, is not in a conflict of interest and may continue to hold the licence or the shares, as the case may be, and may engage in activities authorized by the licence, where the applicable licensing regime requires the licence to be held only by the licence holder and does not permit transfer, divestment or placing the licence in a trust, and where the interest is disclosed to the Conflict of Interest Commissioner and all other requirements of the Act are met. The section also defines the term “licence” for the purposes of the section. This new section 20.1 of the Act is intended to address specific circumstances in which compliance with both the Act and the licensing regime applicable to the Minister’s licence cannot be achieved concurrently.

(Bill No. 102)

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<i>STAGE:</i>	<i>DATE:</i>
<i>1st Reading:</i>	April 16, 2026
<i>2nd Reading:</i>	
<i>To Committee:</i>	
<i>Reported:</i>	
<i>3rd Reading and Pass:</i>	
<i>Assent:</i>	

SIGNATURES:

Honourable Dr. Wassim Salamoun, Lieutenant Governor

Honourable Brad Trivers, Speaker

Joseph Jeffrey, Clerk

Brendan Curran
MLA

PRIVATE MEMBER'S BILL

2026
3rd SESSION, 67th GENERAL ASSEMBLY